



State of New Jersey

PHILIP D. MURPHY
Governor

TAHESHA L. WAY
Lt. Governor

OFFICE OF THE STATE COMPTROLLER
MEDICAID FRAUD DIVISION
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TRENTON, NJ 08625-0025
(609) 826-4700

KEVIN D. WALSH
Acting State Comptroller

JOSH LICHTBLAU
Director

November 22, 2023

Via overnight mail

Elite Caring
David Silverberg
Asher Silverberg
80 West Upper Ferry Road
Ewing NJ 08628

Re: Notice of Overpayment
Case Number: [REDACTED]

Dear Provider:

This letter serves to inform you that the Office of the State Comptroller, Medicaid Fraud Division (MFD) reviewed Medicaid claims that Elite Caring (Elite), Medicaid Provider ID 0574287, submitted for services from September 1, 2018 through June 19, 2023 (review period). As explained more fully below, MFD found that Elite improperly submitted 99 claims for which it received Medicaid overpayments totaling \$8,092.20 that must be repaid to the Medicaid program.

This Notice of Overpayment for \$8,092.20 stems from MFD's review of claims submitted by Elite to Medicaid Managed Care Organizations and the State Fee-For-Service program. Specifically, MFD identified the following two categories of deficient Elite claims, with the number of deficient claims noted for each category:

1. While the recipients were admitted to an inpatient facility, such as a hospital or skilled nursing/long term care center (in violation of N.J.A.C. 10:164-1.5) – 70 claims, with overpayments of \$5,815.70;
2. In excess of five (5) days per week (in violation of N.J.A.C. 10:164-1.4(a)) – 29 claims with overpayments of \$2,276.50.

To obtain a file of MFD's analysis of all paid claims comprising the overpayment for the period reviewed, please contact me via email at [REDACTED]. Please include the case number, "[REDACTED]", in the subject line of any e-mail correspondence.

After reviewing MFD's analysis, if you believe that MFD failed to consider relevant documentation that may affect the number of discrepant claims and overpayment amount, you may submit to MFD information relating to such claims. If you would like MFD to consider such additional information, you must submit to MFD within thirty (30) days of the date of this letter all relevant supporting information. Should you fail to respond to MFD with your position in writing and any relevant additional documents within this thirty (30) day period, MFD will take further appropriate action, including but not limited to: issuing a Notice of Claim, Certificate of Debt, and Notice of Withholding, which would withhold a portion of your future claims payments, and/or any other remedy available to MFD by law.

If you agree with the amount of the overpayment, please mail a Certified Check in the amount noted above made payable to "Treasurer, State of New Jersey" to the address below. Please insert on the memo line of the check "[REDACTED]".

Treasurer, State of New Jersey
Division of Revenue
200 Woolverton Street, Building 20
Lockbox 656
Trenton, New Jersey 08646
Attn: Processing Bureau

Please also forward a copy of the Certified Check and the transmittal letter to my attention at Office of the State Comptroller, Medicaid Fraud Division, P.O. Box 025, Trenton, New Jersey, 08625-0025 or via email to [REDACTED].

This Notice of Overpayment documents and seeks a recovery relating to the improper billing of claims by the provider (entity). Please be advised that this Notice is a public document and, as such, may be placed on the OSC/MFD website.

In addition, please be advised that should MFD find deficiencies pertaining to the same or sufficiently similar underlying conduct for a time period after the date of this letter, pursuant to N.J.S.A. 30:4D-7(h), N.J.S.A. 30:4D-17(e), and N.J.S.A. 30:4D-57(d)(2), in addition to seeking to recover the principal owed, MFD may take further action, including imposing civil penalties against the individual provider/owner Elite - David Silverberg and Asher Silverberg - for such deficiencies.

Sincerely,

KEVIN D. WALSH
ACTING STATE COMPTROLLER

By: Tracy Livingston

Tracy Livingston, Assistant
Director Data and Fiscal
Medicaid Fraud Division

Copy: Don Catinello, Deputy Director, MFD
Glenn Geib, Recovery Supervisor, MFD

MFD Update - January 30, 2024

On January 30, 2024, MFD received a Certified Check, dated January 23, 2024, from Elite Caring for the full amount due, \$8,092.20.